EXCERPTS FROM **THE NEW STANDARD**

ENFORCING ECONOMIC MERITOCRACY, MODERNIZING DIGITAL RIGHTS, AND ELEVATING WORKPLACE CONDITIONS WITHIN THE NFL

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This excerpt was made from a longer paper for a Sports Law class offered at Penn State Dickinson Law in the Fall 2025 semester, proposing a shift in collective bargaining strategy from protecting a fixed share of league revenue to pursuing "growth" through enforceable structural reforms. The full paper argues that the 2020 CBA leaves three major "structural failures" insufficiently addressed: (1) monetization and control of player digital/biometric rights, (2) cross-club disparities in working conditions and facilities, and (3) revenue-sharing incentives that enable certain clubs to underinvest while benefiting from league-wide economics.

The excerpt provided here, found in the original documents from pages 16-23, focuses on **Initiative 2: The Facility & Working-Condition Investment Standard.** Initiative 2 proposes (a) codified minimum standards for club facilities and working conditions and (b) a compliance system with audits, cure periods, and an escrow-style remedy designed to make underinvestment more costly than modernization. It also explains why minimum facility/working-condition standards are properly framed as mandatory subjects of bargaining under federal labor law and anticipates "management rights" objections.

What is Excluded: This excerpt does not include (i) Initiative 1's proposed digital/biometric licensing exchange, or (ii) Initiative 3's proposed "imputed local revenue" rule and ownership-bloc strategy. Those sections are omitted solely for length and topical focus; the full paper can be found here.

Disclaimer regarding current CBA constraints and public report cards: Recent arbitration reporting indicates that the NFLPA's public "team report cards" may not be released going forward under the current CBA.[1] The excerpt is presented to illustrate a standards-and-enforcement framework that is intended to function independently of any public ranking mechanism, meaning that the proposal's core is objective minimum standards, auditability, and remedies, rather than public dissemination.

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[1] Rob Maaddi, *NFL wins grievance against the players' union, banning 'team report cards'*, ASSOCIATED PRESS (Feb. 13, 2026), https://perma.cc/CT6J-L56M (last visited Feb. 13, 2026); *NFL: Team report cards must go after grievance ruling*, REUTERS (Feb. 13, 2026), https://www.reuters.com/sports/nfl-team-report-cards-must-go-after-grievance-ruling--flm-2026-02-13/ (last visited Feb. 13, 2026); Brooke Pryor, *NFL wins grievance against NFLPA regarding report cards*, ESPN (Feb. 13, 2026), https://perma.cc/5KW7-BS7G (last visited Feb. 13, 2026).

Initiative 2: THE FACILITY & WORKING-CONDITION INVESTMENT STANDARD

A. The Problem: Disparity as a Competitive Distortion

1. Evidence of Cross-Club Disparities in Workplace Conditions (Player Survey Data)

The National Football League markets itself as a pillar of elite professionalism, yet in practice, workplace standards vary substantially across clubs. This disparity was laid bare by the 2023 and 2024 NFLPA Team Report Cards, which analyzed survey data from over 1,700 active players to grade clubs from A to F on their treatment of players and families, as well as nutrition and facilities.

Recent arbitration reporting indicates that the NFLPA may not publish public "team report cards" going forward under the current CBA.[2] The point for bargaining remains: player-reported workplace conditions vary materially across clubs. This initiative therefore converts said underlying disparity into enforceable minimum standards measured by objective criteria and supported by an audit-and-remedy structure, rather than relying on any public ranking mechanism.

The results exposed a "two-tier" league. At the bottom, players face conditions comparable to minor league operations.[3] For instance, the Arizona Cardinals received an "F-" for their treatment of families and an "F" for nutrition in the 2023 survey, with players explaining that they were the only team in the league charged for dinner at the team facility.[4] In the Cincinnati Bengals' 2024 report card, it was noted that half the showers in their locker room do not "function properly, lacking either warm water or sufficient water pressure[,]" and that the team would close their cafeteria on off-days, which then forces players to find their own meals during the season.[5]

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[2] *See* sources cited *supra* note 1.

[3] *See generally* NFL Players Ass'n, *2024 NFL Player Team Report Cards* (Feb. 28, 2024), https://perma.cc/WG36-PGBJ (last visited Dec. 15, 2025) (providing a comprehensive overview of club grades and highlighting significant disparities in facility standards).

[4] *See* NFL Players Ass'n, *Arizona Cardinals Report Card 2023* (Mar. 1, 2023), https://perma.cc/DD5S-9CW4 (last visited Dec. 15, 2025) (noting that players reported salary deductions for dinner from the team at the practice facility).

[5] *See* NFL Players Ass'n, *Cincinnati Bengals Report Card 2024* (Feb. 28, 2024), https://perma.cc/E65X-GGAX (last visited Dec. 15, 2025) (ranking the Bengals 26th overall and noting the lack of water pressure and heat in

These are not mere inconveniences; rather, they are gross deviations from the professional standard that is expected of a multi-billion-dollar enterprise. When a player on one team has access to hyperbaric chambers, a full-time physical therapist, and a team of dieticians, while his opponent is billed for a boxed lunch/dinner and showers in cold water, an unequal playing field exists.

2. Impact on Career Longevity and Competitive Balance

The disparities revealed in player survey data shows a material distortion of the League's competitive landscape. While the CBA strictly regulates player compensation through the Salary Cap in an effort to ensure parity in acquiring talent, the League lacks a "Workplace Equity Cap" regarding talent preservation.[6]

High-investment franchises are able to leverage facility spending to circumvent the spirit, if not the letter, of the competitive balance aimed for by the Salary Cap. When a franchise purchases, and subsequently provides, state-of-the-art recovery technology (e.g., cryotherapy, hyperbaric chambers) and comprehensive nutrition plans at no cost to the player, they are effectively giving additional compensation that does not count towards the cap. Conversely, players rostered on a "low-investment" team must either pay out-of-pocket for these recovery services or forgo them entirely. This effectively reduces their net income and physical readiness for the next game. As the Supreme Court noted in *American Needle*, the teams are "separate economic actors pursuing separate economic interests" that compete for talent.[7] Currently, this competition is distorted because low-investment owners can "free-ride" on the League's overall revenue, while in turn refusing to invest in the infrastructure required to maintain the product: players at an elite level.

This disparity disadvantages players drafted by or signed to low-investment organizations. When low-revenue teams fail to reinvest in their facilities, they are not merely saving money, they are inherently also extracting physical value from their players without providing

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showers, as well as cafeteria closures).

[6] *See* NFL Collective Bargaining Agreement (Mar. 15, 2020), https://perma.cc/L6Y6-EKMF [hereinafter 2020 CBA], art. 13; *see also* Clay Moorhead, *Revenue Sharing and the Salary Cap in the NFL: Perfecting the Balance Between NFL Socialism and Unrestrained Free-Trade*, 8 VAND. J. ENT. & TECH. L. 641, 670 (2006) (noting the salary cap was "meant to help level the playing field"); *Am. Needle, Inc., v. Nat'l Football League*, 560 U.S. 183, 204 (2010) (recognizing the "legitimate and important" interest in maintaining competitive balance).

[7] *Am. Needle*, 560 U.S. at 195.

the necessary maintenance to sustain that value. The Union, by tolerating substandard working conditions to continue, has allowed a system where a player's career expectancy, and thus his lifetime earnings, can be artificially shortened simply by the virtue of the team that he is employed by or is signed to. Overall, this undermines the fundamental premise of the draft and free agency systems, which assume that all franchises are viable, professional destinations that are capable of supporting elite athletic performance.

B. The Solution: Codified Standards & The Escrow Remedy

To rectify the inequalities of the "two-tier" league, the NFLPA should negotiate enforceable facility standards through objective criteria and remedies, independent of any public ranking mechanism. This solution requires two distinct mechanisms: the codification of a "Standard of Care" within the CBA and the implementation of a financial remedy that makes underinvestment more costly than modernization.

1. Article 39 Amendment: "The Standard of Care"

Currently, Article 39 of the CBA ("Players' Rights to Medical Care and Treatment") primarily governs the credentials of medical staff, the Emergency Action Plan, and specific medical protocols.[8] While the Accountability and Care Committee is tasked with conducting an annual review of "Club rehabilitation equipment, facilities and modalities,"[9] the CBA lacks mandatory minimum standards for non-medical working conditions, such as nutrition, locker room hygiene, and family support facilities.

The Union must propose an amendment to Article 39 that establishes a "Facility & Working-Condition Investment Standard." This amendment would create a mandate which requires that every franchise meet specific, objectively auditable criteria informed by player survey data and prevailing best standards across club facilities. These standards would include:

- **Nutrition**: A mandate which would provide three high-quality meals per day during the season at no cost to the player, eliminating the practice currently utilized by specific teams which deduct meal costs from player pay.
- **Recovery Infrastructure**: A mandatory provision of functioning saunas, steam rooms, and cold plunges in all team facilities, ensuring parity with the standards set by

[8] 2020 CBA, *supra* note 6, art. 39, §§ 1-4.
[9] *Id.* art. 39, § 5(c)(x).

high-investment clubs.

- **Hygiene and Capacity**: A minimum square footage requirement would be established for locker rooms of each team, as well as a mandatory ratio of showers and toilets to players to prevent the sanitary failures observed in low-investment clubs.

For avoidance of doubt, compliance is measured against objective minimum requirements rather than comparison to other clubs.

2. The Enforcement Mechanism: Corrective Spend vs. Cash Forfeiture

Rules without remedies result in them existing as suggestions rather than as rules. To ensure that compliance occurs, the NFLPA must implement an enforcement mechanism that directly targets the "profit-taking" owner's bottom line. The proposal utilizes a "Corrective Spend" model backed by an "Escrow Remedy."

Under this system, the NFLPA and NFL would conduct joint annual audits of all club facilities. If a club falls below the Investment Standard agreed upon by the two organizations, they are issued a notice of deficiency and are given a remedy period to allocate funds for specific improvements (the "Corrective Spend").

If the Club then refuses to make the necessary capital improvements within this remedy period, then the "Escrow Remedy" is triggered. In this situation, the Club would be required to forfeit a cash amount equal to the cost of the unperformed upgrades plus a punitive multiplier. This forfeited cash would not revert to the League; instead, it would be deposited into an escrow account and distributed directly to the players on that Club's active roster as a "Substandard Condition Bonus."

Effectively, this mechanism would align the ownership group's incentives. A rational owner will choose to invest $5 million in a new weight room, which is an asset that directly improves team performance and franchise value, rather than being required to pay $7 million in cash directly to players for no return on investment. By making modernization less expensive than underinvestment, the Union is able to eliminate the free-rider advantage.

C. *Legal Analysis: Mandatory Subjects of Bargaining & The Ford Doctrine*

To implement the Facility & Working-Condition Investment Standard, the NFLPA has to firmly establish that the quality of club facilities is not merely a matter that an owner has discretion over, but instead, is a mandatory subject of bargaining under the National

Labor Relations Act (NLRA). The League will likely attempt to shield these deficiencies behind the defense of "management rights," arguing that capital expenditures on facilities are core entrepreneurial decisions. However, the explicit text of the NLRA and Supreme Court precedent provide the Union with a dispositive counterargument to these claims.

1. The Statutory Duty to Bargain

The League's obligation to negotiate facility standards is grounded in Section 8(d) of the NLRA, which states that employers and union representatives "meet at reasonable times and confer in good faith with respect to wages, hours, and other terms and conditions of employment."[10] Under Section 8(a)(5) of the Act, a refusal to negotiate on these matters constitutes an unfair labor practice.[11] The Supreme Court has clarified that the legislative intent of these provisions was to ensure that employers and employees "work together to establish mutually satisfactory conditions" and to channel disputes into "constructive, open discussions."[12] Furthermore, an employer's refusal to negotiate in good faith as to any subject which falls under Section 8(d) violates the Act, even if the employer is acting in good faith regarding other matters.[13]

2. Facilities as "Terms and Conditions of Employment"

The legal battleground between the League and the Union will be over whether facility investments, such as turf quality, locker room hygiene[14], and recovery technology, qualify as "terms and conditions of employment." Under the doctrine established in *Ford Motor Co. v. NLRB*, these matters fall squarely within the mandatory scope of bargaining. In *Ford*, the Court ruled that in-plant food prices and services were mandatory subjects because they were "plainly germane to the 'working environment'."[15] The Court reasoned that conditions that an employee works under are "matters of deep concern to workers" and should be funneled into collective

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[10] 29 U.S.C. § 158(d).

[11] 29 U.S.C. § 158(a)(5); *see also NLRB v. Katz*, 369 U.S. 736, 743 (1962) (finding that a refusal to negotiate on mandatory subjects violates § 8(a)(5)).

[12] *Ford Motor Co. v. NLRB*, 441 U.S. 488, 499 (1979) (quoting *H.K. Porter Co. v. NLRB*, 397 U.S. 99, 103 (1970)).

[13] *Katz*, 369 U.S. at 743.

[14] *See, e.g.*, NFL Players Ass'n, *2024 NFL Player Team Report Cards*, *supra* note 3 (reflecting player-reported facility condition concerns across clubs, including cleanliness and locker-room-related issues).

[15] *Ford Motor Co.*, 441 U.S. at 498.

bargaining in order to avoid any industrial strife.[16]

If the price of a cafeteria sandwich is "plainly germane" to the working environment of a factory employee, then the safety of a playing surface and the quality of medical rehabilitation facilities are undeniably germane to the working environment of a professional athlete. Federal courts continue to apply this "germane" test to expand the scope of bargaining. For example, the Seventh Circuit has held that even the installation of surveillance cameras is a mandatory subject of bargaining because it is "plainly germane to the 'working environment'" and is analogous to physical examinations and drug testing.[17]

3. Refuting "Management Rights" Defenses

The League might counter that decisions regarding facility upgrades often involve capital investment, and therefore are "managerial decisions, which lie at the core of entrepreneurial control," effectively exempting them from bargaining.[18] The Union must refute this claim by distinguishing the nature of the investment.

The "entrepreneurial control" exception applies only to decisions that are fundamental to the "running of a profitable business," such as a decision to shut down part of a business for economic reasons.[19] It does not apply to the physical infrastructure used by employees to perform their duties. If the benefit to labor-management relations "outweighs the burden placed on the conduct of the business," then bargaining over management decisions that have a substantial impact on the continued availability of employment should be required.[20] Requiring an NFL club to invest in a sauna or a functional locker room does not usurp the owner's ability to set ticket prices, choose a head coach, or their control in marketing strategies. Instead, it regulates the "physical dimension of one's working environment," which the Supreme Court has explicitly protected as a mandatory subject of bargaining.[21]

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[16] *Id.*

[17] *Nat'l Steel Corp. v. NLRB*, 324 F.3d 928, 932 (7th Cir. 2003) (quoting *Ford Motor Co.*, 441 U.S. at 498).

[18] *Ford Motor Co.*, 441 U.S. at 498 (quoting *Fibreboard Paper Prods. Corp. v. N.L.R.B.*, 379 U.S. 203, 223 (1964) (Stewart, J., concurring)).

[19] *First Nat'l Maint. Corp. v. NLRB*, 452 U.S. 666, 677 (1981).

[20] *Id.* at 679.

[21] *Ford Motor Co.*, 441 U.S. at 494 (quoting *Ford Motor Co. v. N.L.R.B.*, 571 F.2d 993, 1000 (7th Cir. 1978)).

D. Strategic Persuasion: Asset Protection

In order to achieve the Facility & Working-Condition Investment Standard, the Union has to fundamentally reframe how negotiations are handled. Instead of presenting the standard as a labor cost that opposes ownership interests, the NFLPA must present it as a mechanism to enforce competitive equity amongst all clubs. By leveraging the economic tension between high-investment franchises and low-investment franchises, the Union can build a coalition of owners that would support codifying professional standards, eliminating the advantage currently enjoyed by clubs that underinvest in player safety.

1. Pitching to the "High-Investment" Owners: Eliminating Competitive Disadvantage

The primary political obstacle to this initiative is the bloc of owners that minimize overhead in order to maximize profit. However, these owners are natural adversaries of the "Growth Owners," which invest heavily in state-of-the-art facilities to attract and retain talent.[22] As noted in law review articles that discuss economics in the NFL, the League's collective structure creates a "free rider" problem where certain teams rely on national revenue sharing while refusing to invest in local growth or infrastructure.[23] Currently, high-investment owners effectively subsidize the League's labor stability, as they spend millions on recovery technology and nutrition that extend player careers, while low-investment teams extract physical value from their players without a corresponding investment in maintenance.

The Supreme Court in *American Needle, Inc. v. NFL* that NFL clubs are "separate economic clubs pursuing separate economic interests" that compete with one another for talent.[24] This competition becomes distorted when low-investment clubs begin to cut corners on medical staffing and facility conditions. By codifying a facility investment floor, the Union aligns itself with the high-investment owners, which ensures that all clubs compete based on management skill and roster construction, rather than on who can minimize operating costs at the expense of player health.

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[22] *See* Moorhead, *supra* note 6, at 642-43 (distinguishing between owners that promote the "League Think" philosophy and those that prioritize individual profit).

[23] *Id.* at 660 (describing how the emergence of unshared local revenue has eroded the collective mentality, encouraging teams to minimize costs while relying on shared revenue).

[24] *Am. Needle*, 560 U.S. at 196-97.

2. Pitching to the League: Brand Consistency and Risk Management

For the League Office, the argument becomes one of brand consistency and a reduction in liability. The NFL frequently markets itself as a premium entertainment product, and in doing so utilizes player images and footage to promote the "integrity and good character" of the game.[25] But by allowing franchises to operate with substandard conditions, such as charging players for meals or failing to provide sanitary locker rooms, this brand positioning is undermined and exposes the League to reputational risk.

Additionally, mandating facility standards acts as a liability shield. Under the *Ford* doctrine, conditions such as food service and physical environments are mandatory subjects of bargaining since they are "plainly germane" to the working environment.[26] By proactively codifying these standards in Article 39, the League reduces the risk of grievances or litigation being filed in the future that alleges negligence in player care. Having a mechanism that enforces corrective spending ensures that rational owners will choose to invest in their own assets, or facilities, thereby modernizing the League's infrastructure without requiring a work stoppage.

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[25] *See Dryer v. Nat'l Football League*, 689 F. Supp. 2d 1113, 1120 (D. Minn. 2010) (noting the NFL's argument that its promotional films are "purely positive deceptions" designed to promote the brand).

[26] *Ford Motor Co.*, 441 U.S. at 498.